

▶ **Critics of the bill and large tech firms are concerned it will impact investments and stifle innovation in the fast-evolving sector**

▶ **MSMEs are concerned that it will hurt business, as it will limit the ability of platforms to use data for targeted advertising**

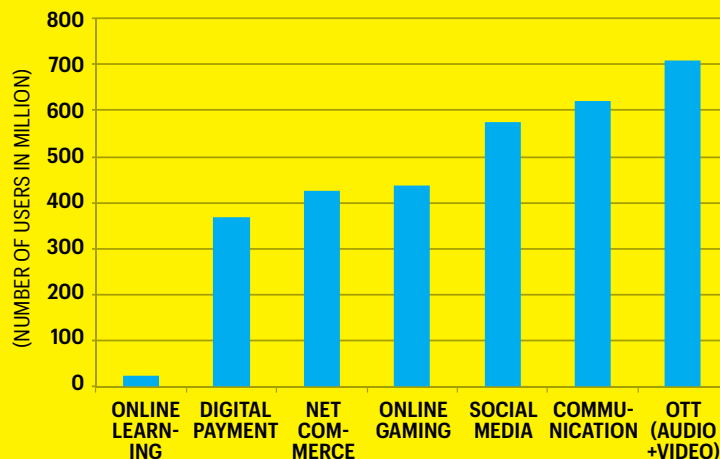
▶ **Small Indian start-ups believe regulating practices will level the playing field for them**

▶ **The bill will protect consumers' data, as being done internationally**

▶ **CCI seen to not have enough staff strength to take up the responsibility of enforcing the proposed provisions of the bill**

USE CASE

● **OTT, communications, and social media are top activities for internet users in India**



SOURCE 'INTERNET IN INDIA 2023' REPORT BY IAMAI AND KANTAR

respect of a CDS, based on an assessment of the information available with it considering any or all of the qualitative factors set out in the DCB.

A section of micro, small and medium enterprises are of the view that the proposed law could adversely impact them due to the limitations placed on targeted ad-

vertising by large digital platforms.

For now, there doesn't seem to be a clear answer or consensus on any of these issues. But what almost all stakeholders agree upon is that there needs to be more discussions before the bill is finalised.

Malik of The Dialogue says the DCB will require significantly more time for consultation. "An extended

timeline... will allow the ecosystem to conduct more analysis on the impact of the law on the economy, and also bring in stakeholders like gig workers, small sellers and consumers in the discourse," he says.

Sakle of Khaitan notes that all tech companies would want the level of prescriptiveness in any law to be as less as possible. "What end shape and form the draft DCB takes will be based on discussions and debates in the next few months," he says.

The MCA has indicated that it is keen on taking forward the bill on priority and it is likely to be a key focus area once the new government is formed. More discussions will, of course, follow and industry and experts are hopeful that a happy consensus—like that for the DPDP Act—may be forged. But that's still some distance away. **BT**



"While the list of CDS includes various services that have not observed any structural competition bottlenecks, the numbers provided under quantitative thresholds are too low"

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